



LIFEPREP ACADEMY FOUNDATION



ACCIDENT WAIVER AND RELEASE OF LIABILITY FORM

I HEREBY ASSUME ALL OF THE RISKS OF PARTICIPATING IN ANY/ALL ACTIVITIES ASSOCIATED WITH THIS EVENT, including by way of example and not limitation, any risks that may arise from negligence or carelessness on the part of the persons or entities being released, from dangerous or defective equipment or property owned, maintained, or controlled by them, or because of their possible liability without fault. I certify that I am physically fit, have sufficiently prepared or trained for participation in this activity, and have not been advised to not participate by a qualified medical professional. I certify that there are no health-related reasons or problems which preclude my participation in this activity. I acknowledge that this Accident Waiver and Release of Liability Form will be used by the event holders, sponsors, and organizers of the activity in which I may participate, and that it will govern my actions and responsibilities at said activity. In consideration of my application and permitting me to participate in this activity, I hereby take action for myself, my executors, administrators, heirs, next of kin, successors, and assigns as follows:

(A) I WAIVE, RELEASE, AND DISCHARGE from any and all liability, including but not limited to, liability arising from the negligence or fault of the entities or persons released, for my death, disability, personal injury, property damage, property theft, or actions of any kind which may hereafter occur to me including my traveling to and from this activity, THE FOLLOWING ENTITIES OR PERSONS: PPF dba Life Prep Academy Foundation and/or their directors, officers, employees, volunteers, representatives, and agents, and the activity holders, sponsors, and volunteers;

(B) INDEMNIFY, HOLD HARMLESS, AND PROMISE NOT TO SUE the entities or persons mentioned in this paragraph from any and all liabilities or claims made as a result of participation in this activity, whether caused by the negligence of release or otherwise. I acknowledge that PPF dba Life Prep Academy Foundation, and their directors, officers, volunteers, representatives, and agents are not responsible for the errors, omissions, acts, or failures to act of any party or entity conducting a specific activity on their behalf. The risks include, but are not limited to, those caused by terrain, facilities, temperature, weather, condition of participants, equipment, vehicular traffic, lack of hydration, and actions of other people including, but not limited to, participants, volunteers, monitors, and/or producers of the activity. These risks are not only inherent to participants, but are also present for volunteers. I hereby consent to receive medical treatment which may be deemed advisable in the event of injury, accident, and/or illness during this activity. I understand while participating in this activity, I may be photographed. I agree to

allow my photo, video, or film likeness to be used for any legitimate purpose by the activity holders, producers, sponsors, organizers, and assigns. The Accident Waiver and Release of Liability Form shall be construed broadly to provide a release and waiver to the maximum extent permissible under applicable law.

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Works and Rights.

(a) Works. League acknowledges and agrees that, as between the parties, RCX exclusively and in perpetuity owns and controls any and all rights to record, broadcast, telecast, display, publish, reproduce, film, exhibit, distribute, photograph, exploit, video tape, print and/or otherwise make use of, and any and all rights to authorize others to do so, whether on behalf of RCX or for its own accounts, any film, audio, depiction, audio visual, video, material, recording, document, image, record, statistic, data (of any kind, including biometric data), photo, sound, or any other type of information or experience or content that is capable of being captured or recorded by any means arising from, related to or during any Program activity or event, any service performed by League pursuant to the terms herein or otherwise related to the Program or RCX or any related activities or business (collectively, the "Works") in any manner whatsoever, alone or in composite or conjunction with other materials, in any and all media, whether now known or hereafter devised (collectively, "Media"), in or by any manner, method or device (whether now known or hereafter devised), and all other rights, privileges, benefits, matters and things incident to or arising out of all or any of the foregoing, including for any and all commercial and non-commercial purposes, including for purposes of advertising and promoting Licensor, MLS, RCX, or the Program.

(b) Name, Image, Likeness, Etc. League hereby grants, for itself on behalf of its players, coaches, parents and other participants (collectively, "Participants"), to Licensor and RCX and the other Releasees (as defined below) the exclusive, perpetual, royalty-free, irrevocable, fully-paid up, worldwide right and license to use, exhibit, edit, disseminate, display, reproduce, print, publish, publicly perform and make any other uses of League's or its Participants' image, name, sobriquet, marks, logos, voice, movements, gestures, actions, persona, signature, likeness, uniform, biomaterial, biographical material and other indicia and attributes of League and its Participants, in any manner whatsoever, alone or in composite and/or conjunction with any other materials, on, via or through any and all Media, in connection with, related to or for any purpose of: (i) any of the rights to the Works described above; (ii) any advertising, promotion, publicity, operation or exploitation of Releasees (as defined below), Releasees or the Program and (iii) on [MLSsoccer.com/mlsgo](https://mlssooccer.com/mlsgo) (the "Website") in connection with any postings of team rosters, stories or otherwise.

Data Ownership; Privacy Policies; Consents.

League hereby: (i) recognizes the exclusive ownership by RCX, as between RCX and League, of all Data; and (ii) disclaims any right or interest in the Data. League shall develop, implement and maintain agreements with Participants and privacy policies (together, "Governing Data Policies

and Agreements") consistent with Applicable Privacy and Data Security Laws and League's obligations under this Agreement. League will structure such Governing Data Policies and Agreements to provide all necessary notices and to ensure it has all necessary consents, consistent with Applicable Privacy and Data Security Laws to allow League to provide Data to RCX (and for RCX to provide Data to the MLS Releasees and each of their respective partners) in accordance with this Section 10 in a manner that permits RCX, the MLS Releasees and each of their respective partners to use such Data for marketing purposes and share such Data with Licensor and the Releasees consistent with the terms of this Agreement. Such efforts shall include, but not be limited to, (i) including a provision in the League privacy policy providing notice to Participants that League will disclose Data to third parties, including, but not limited to RCX and Licensor, (ii) including an affirmative opt in to receive marketing messages, as specified by RCX, and (iii) providing conspicuous notice of such disclosure and active consent for such disclosure. Without limiting the generality of the foregoing, League shall maintain reasonable administrative, technical and physical safeguards to protect such Data from unauthorized access, use or disclosure.

Process for Data Sharing.

On a quarterly basis or as otherwise requested by RCX, League shall provide or direct its agents to provide RCX with all available Data (in accordance with Applicable Privacy and Data Security Laws) in a form mutually agreed upon by the parties. League shall not disclose, release, distribute, or deliver Data, or any portion thereof, to any third party other than RCX without the other RCX's prior written consent. Any purpose or use not specifically authorized in this Agreement is prohibited.

Information Security.

League shall use, and shall implement, maintain, and adhere to a written information security program that incorporates, reasonable and adequate legal, organizational, physical, administrative, and technical measures, and security procedures to safeguard and ensure the security, confidentiality, and integrity of the Data. At a minimum, League shall provide safeguards for Data that meet or exceed all requirements under Applicable Privacy and Data Security Laws, and that protect such Data against reasonably anticipated threats or hazards, including unauthorized access, disclosure, duplication, destruction, use, modification, or loss, including by: 10 (i). maintaining records of processing activities in accordance with all Applicable Privacy and Data Security Laws; (ii). performing its obligations under this Agreement in such a manner in compliance with, and so as not to cause the Parties to be in violation of, all Applicable Privacy and Data Security Laws; and (iii). collecting Data in accordance with instructions issued in writing by a Party from time to time.

Data Sharing Restriction.

Notwithstanding League's obligations in this Section 10, League shall not provide any of the following data to RCX: (i) Sensitive Data; or (ii) Data that if shared would violate any Applicable Privacy and Data Security Laws.

Limitations on League Data Use. League shall solely use the Data collected as part of this Agreement for the purposes of providing the Program. League shall not: (i) "sell" or "share" Data, as defined by Applicable Privacy and Data Security Laws; (ii) retain, use, or disclose the Data for any purpose other than for the "business purposes" as defined by the Applicable Privacy and Data Security Laws, specified in this Agreement, including retaining, using, or disclosing the Data for a "commercial purpose" as defined by Applicable Privacy and Data Security Laws, other than the business purposes specified in this Agreement or as otherwise permitted by Applicable Privacy and Data Security Laws; (iii) retaining, using, or disclosing Data outside of the direct business relationship between the League and RCX; or (iv) combining the Data League receives from, or on behalf of, another person or persons, or collects from its own interactions with Participants, unless otherwise permitted under Applicable Privacy and Data Security Laws.

Release of Liability.

(a) League, on its own behalf, and on behalf of the other Releasors (as defined below), hereby (i) releases and forever discharges each of the Releasees (as defined below) from all Released Claims (as defined below) and (ii) agrees not to sue or bring any proceeding against any Releasee for any Released Claims, whether presently known or unknown and whether or not caused by the negligence of any of the Releasees.

(b) As used in this Agreement, (i) the term "Releasors" means each of League, its past, present and future affiliates, each of its Participants, and the past, present and future heirs, executors, administrators, trustees, beneficiaries, legal representatives, agents, attorneys, servants, insurers, employees, directors, officers, partners, principals, shareholders, members, managers, investors, predecessors, successors and assigns of any such person or entity, (ii) the term "MLS Releasees" means MLS and the MLS clubs, Licensor, MLS Canada L.P., Pro Soccer Development, L.P., Soccer United Marketing, LLC, and each of their respective past, present and future affiliates and each of their respective predecessors, successors and assigns and each of their respective past, present and future, direct or indirect, owners, partners, principals, managers, members, shareholders, directors, officers, agents, trustees, employees, governors, attorneys and other representatives, (iii) the term "RCX Releasees" means RCX, RCX Canada Inc., and each of their past, present and future affiliates and each of their respective predecessors, successors and assigns and each of their respective past, present and future, direct or indirect, owners, partners, principals, managers, members, shareholders, directors, officers, agents, trustees, employees, governors, attorneys and other representatives, (iv) the term "Releasees" means the MLS Releasees and the RCX Releasees, collectively, and (v) the term "Released Claims" means any actions, causes of action, suits, debts, losses, costs, controversies, damages, judgments, claims, liens, agreements, contracts and liabilities of whatever kind or nature in law, equity or otherwise, whether now known or unknown, suspected or unsuspected, arising out of, attributable to, in connection with, or in any way relating to, this Agreement, or League's or any of its Participant's participation in the Program (including actions for property damage, personal injury or wrongful death).

League hereby expressly waives all rights under Section 1542 of the California Civil Code, and under any and all similar laws of any jurisdiction. League is aware that said Section 1542 of the

California Civil Code provides as follows: 11 "A GENERAL RELEASE DOES NOT EXTEND TO CLAIMS THAT THE CREDITOR OR RELEASOR DOES NOT KNOW OR SUSPECT TO EXIST IN HIS OR HER FAVOR AT THE TIME OF EXECUTING THE RELEASE AND THAT, IF KNOWN BY HIM OR HER, WOULD HAVE MATERIALLY AFFECTED HIS OR HER SETTLEMENT WITH THE DEBTOR OR RELEASED PARTY." (c) League expressly acknowledges, for itself and on behalf of each of the other Releasors, that (i) the foregoing waiver of the provisions of Section 1542 of the California Civil Code is a material term and condition of this Agreement, (ii) this Agreement shall be given full force and effect in accordance with each and all of its express terms and provisions, including those terms and provisions relating to unknown and unsuspected Released Claims, if any, to the same effect as those terms and provisions relating to any other Released Claims hereinabove described, and (iii) that each is fully aware that they might hereafter discover facts or other information in addition to or different from those which they now know or believe to be true, with respect to the subject matter of the Released Claims. Nevertheless, the Releasors intend to hereby fully, finally, and forever settle and release all matters, disputes, differences, known or unknown, suspected or unsuspected, which might now exist or heretofore might exist in connection with the Released Claims. The releases given herein shall be and remain in effect as a full and complete release notwithstanding the discovery or existence of any such additional or different facts or information.

I CERTIFY THAT I HAVE READ THIS DOCUMENT AND I FULLY UNDERSTAND ITS CONTENT. I AM AWARE THAT THIS IS A RELEASE OF LIABILITY AND A CONTRACT AND I SIGN IT OF MY OWN FREE WILL.

Participant's Signature	Date	Participant's Name (print legibly)	Age
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Parent/Guardian Signature	Date	Parent/Guardian Name (print legibly)
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